



DEPARTMENT OF HUMAN SERVICES

Social Services Rules

RESOURCE DEVELOPMENT

12 CCR 2509-6

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

7.500.1 MISSION STATEMENT

To develop and coordinate the external resources necessary to fulfill the objectives of the county human/social services programs.

7.500.11 Target Groups

Target groups served by this program area are the individuals who will be serving the department's clients in such roles as foster or kinship foster parents for children/youth or adults or child care providers or adoptive parents.

7.500.2 ASSESSMENT OF FOSTER CARE HOMES AND ADOPTIVE HOMES

- A. The family assessment must be completed using the Structured Analysis Family Evaluation (SAFE™) home study. The SAFE™ assessment must be completed by using all tools and processes required by the SAFE™ protocol. Persons completing the home studies must be qualified and must complete the required two (2) day SAFE™ training prior to completing the assessment. The SAFE™ assessment must be completed prior to certification of a foster parent or adoptive parent.

A SAFE™ refresher training is required every three (3) years from the date of the initial SAFE™ training received or previous refresher training. This includes home study practitioners and their supervisors.

1. The SAFE™ practitioner must conduct a minimum of one (1) joint interview with a couple or all applicants, one (1) individual interview with each adult member of the household, and an age/developmentally appropriate interview with each child/youth residing in the home. A minimum of two (2) interviews is required with a single applicant.

2. Interview Requirements

The original SAFE™ assessment must include the date, person interviewed, length of interview (hours and minutes), location of each interview, and must be documented in the SAFE™ assessment. If the certifying agency proposes having interviews conducted outside of the residence, an applicant must be consulted and be in agreement. the conversation must be documented in the SAFE™ assessment.

- a. A minimum of two interviews must be completed in the applicant's home on separate days.
- b. The second interview, and any subsequent interviews of the adults must not be completed until at least three (3) calendar days after the previous interview.

3. The SAFE™ practitioner must document the applicant's relationship with the county department of human/social services, including a discussion about the applicant's ability and willingness to work with the child welfare system, court, guardian ad litem (GAL), legal parent/legal custodian, and others in the child's/youth's life.
4. The signature page of the SAFE™ assessment must be signed and dated by the person completing the assessment and supervisor/designee. The applicant must sign the SAFE™ assessment/update section indicating the individual read and reviewed the final draft of the assessment. All signatures must be dated prior to or on the date of the issuance of the foster care home certificate.
5. The county department must complete a search of the Comprehensive Child Welfare Information System (CCWIS), Colorado Bureau of Investigation (CBI), Federal Bureau of Investigation (FBI), and the Colorado court case management system at the State Judicial Department.
 - a. Prior to full certification of a foster care home, there shall be a review and documentation in the applicant's provider record:
 - 1) A background check for each adult living in the home for the following:
 - a) Child abuse/neglect records check in every state where the adult has resided in the five (5) years immediately preceding the date of application for each adult (eighteen (18) years and older) living in the home.
 - b) A fingerprint-based criminal history record information check of CBI and FBI records:
 - i. A new FBI fingerprint-based criminal history information record must be completed every five (5) years from the original fingerprint date as required in Section 7.701.33.D.5.
 - c) A comparison search on the court case management system at the State Judicial Department, using the name and date of birth with available criminal history information for each adult eighteen (18) years and older living in the home. This search must be completed regardless of whether the CBI and FBI fingerprint history confirms or does not confirm a criminal history. These checks are valid for one year prior to certification.
 - d) The CBI sex offender registry and national sex offender public website (NSOPW) operated by the United States Department of Justice by:
 - i. Known names, nicknames, also known as (AKA), and addresses of each adult residing in the foster care home. Checks must be completed prior to each recertification.
 - ii. Address only of the foster care home, including a copy of the map from the respective database to confirm that the address of the foster care home has been checked.

- iii. Sex offender checks must be completed prior to each recertification.
- 2) Complete SAFE™ reference letters with signatures;
 - 3) Health information including a health assessment completed by a physician, doctor of osteopathic medicine, physician assistant, or a nurse practitioner for each individual living in the home;
 - 4) The review of existing agency case records, including the CCWIS, for prior foster care home certifications or denials; and,
 - 5) Assessments of any concerns raised from the application and/or other sources of information.
 - 6) The results of the face-to-face interviews with all members of the household.
- b. The Colorado Department of Human Services Original Application to care for Children and Youth expires one year from the date of applicant(s) signature(s) if the foster care home is not certified.
- c. FBI fingerprint-based criminal history record information checks shall be initiated for all prospective foster and adoptive parents and each adult eighteen (18) years and older living in the foster care home. The FBI reports shall be made available to the county department of human/social services submitting the request for information.
 - 1) Following review of FBI information, the findings may only be identified in the home study as eligible, not eligible, meets criteria, does not meet criteria, or inconclusive.
- d. All CBI and FBI fingerprint-based criminal history record information reports, including court dispositions, if applicable, and results from the five-year child abuse and/or neglect checks shall remain confidential in the county department records.
- e. A county department shall not place a child and/or youth in the foster care home if the foster parent or any adult eighteen (18) years of age or older who resides in the home:
 - 1) Is a registered sex offender, or,
 - 2) Has a finding of child abuse and/or neglect in the CCWIS or another state's child abuse and neglect registry, unless it is determined following a review of the finding that the placement is safe.

6. Kinship Foster Care
 - a. Assessment includes the applicant's ability to provide a permanent home through adoption, guardianship, or permanent custody. also included are the ability to meet the individualized needs of the specified child(ren)/youth, the relationship with birth parents/legal custodians and extended family members as it impacts the applicant's ability to care for the child(ren)/youth, and their ability to set boundaries with the birth parents/legal custodian to maintain safety for the child(ren)/youth.
 - b. Applicants are not prevented from fostering if they are not able to provide a permanent home. when completing the assessment. Section 7.708, Rules Regulating Foster Care Homes shall apply to all applicants.
7. When there is a significant change in the composition of the household, an update must be completed on the update template or written in a word document. The update must be completed within 45 calendar days from the date the county department becomes aware of the change. Expectations for time frames for completing background checks is located in 7.500.2 A.11.b.5.

When the change occurs 45 calendar days or less from the expiration date of the certificate, the change may be addressed in the SAFE™ update. The addendum needs to be signed by all parties. these changes may include but are not limited to:

 - a. New individuals that are eighteen (18) years of age or older, living in the foster care home (including results of the background checks);
 - b. When a household member moves out of the foster care home;
 - c. The age, gender, gender identity, and/or special characteristics of the child(ren)/youth that will be considered for the foster care home has changed. A re-evaluation of the foster care home will be completed and the assessment revised;
 - d. New location of the foster care home;
 - e. Marital/domestic relationship; or,
 - f. Health issues, incapacitation, or death of a foster parent or household member.
8. SAFE™ Requirements When Certification Status Changes.
 - a. A full SAFE™ assessment is required when a foster care home was closed longer than 365 days.
 - b. When the foster care home was closed less than 365 days, a comprehensive update is required to identify new relevant information. All relevant domains and/or any gaps in content from the original home study and subsequent updates, as well as the completion of new update questionnaires, must be included.
 - 1) When all historic SAFE™ documents, are not available, a full SAFE™ assessment must be completed.

9. Other Requirements

- a. Assessment of the ability of the applicant(s) to foster and/or adopt a child/youth and to preserve continuity of the child's/youth's identity in a positive and affirming manner. Factors should include, but are not limited to, consideration of the child's/youth's sexual orientation, gender identity and expression, racial and ethnic identity, family, community, neighborhood, faith or religious beliefs, school activities, friends, and the child's/youth's and family's primary language. Documentation of the assessment of this requirement shall be in the case file.
- b. The application for foster care or adoption shall be denied for reasons listed in Section 7.500.312.D and may be denied for reasons listed in Section 7.500.312.E. If the applicant has ever been denied as a prospective foster and/or adoptive parent, the SAFE™ assessment must address the reason for the denial and any resolution of disagreements concerning the decision.
- c. As part of the assessment, the agency must:
 - 1) Complete a minimum of one joint face-to-face interview with a couple, one individual face-to-face interview with each adult member of the household, and, if applicable, one individual face-to-face interview with any person considering a second parent adoption of the child(ren)/youth, and an age/developmentally appropriate face-to-face interview with all children/youth residing in the home. For single applicants, a minimum of two interviews will be required.
 - 2) Complete at least one face-to-face interview in the applicant's home.
 - 3) Complete an on-site inspection for foster care homes to determine compliance with the Rules and Regulations for Foster Care Homes, Section 7.708. Approval of local zoning, health, or fire departments must be documented in the foster care home file when the situation warrants.
 - 4) Complete interviews over a period of not less than three (3) consecutive days.
 - 5) Complete an annual SAFE™ update. This shall include at least one visit in the foster care home and a review of the current medical status. any child abuse/neglect assessments completed during the previous year shall be discussed with the applicant(s).

If the governor or local government declares a disaster or emergency, and because of the declared disaster or emergency the medical exams for the foster parent(s), other children, and other adults residing in the home cannot be completed for the child/youth in the required time frame, the medical exam(s) must be completed as soon as possible, but no later than 45 calendar days after the declared conclusion of the disaster or emergency.
- d. The application and medical records must be reviewed; any issues that are identified will be discussed with the applicant. No physical examination shall be required of any person who in good faith relies upon spiritual means or prayer in the free exercise of religion to prevent or cure a disease unless there is a reason to believe the individual's physical condition is such that the person would be unable to care for a child/youth.

- e. The county department shall not complete a foster care home or adoptive home assessment on a member of its own staff. The worker should check with the supervisor for county policies and procedures regarding completing assessments on county staff.
- f. Water, if from any source other than a regular municipal water supply, shall be tested for compliance with water quality requirements.
- g. A current photograph taken within one (1) year of the foster family shall be requested and maintained in the provider record.
- h. Pursuant to Section 19-1-130, C.R.S., a service provider means the State Department of Human Services, a county department of human or social services, or a child placement agency. This includes a contractor or subcontractor that provides placement-related services on a service provider's behalf.
 - 1) A service provider shall provide placement related services in a manner that is culturally responsive to the complex social identity of the individual receiving such services. complex social identities include but are not limited to race, ethnicity, nationality, age, religion, sex, sexual orientation, gender identity, gender expression, socioeconomic status, physical or cognitive ability, language, beliefs, values, behavior patterns, and customs.

None of these characteristics may be used to cause the delay or denial of an out-of-home placement of a child or youth, unless the delay or denial of the placement is not detrimental to the health or welfare of the child or youth.
 - 2) The county department of human/social services must not deny any person the opportunity to become a foster or an adoptive parent solely on the basis of a real or perceived disability, race, creed, religion, color, sex, sexual orientation, gender identity, gender expression, marital status, national origin, ancestry, or any communicable disease, including HIV, of the person or a member of the person's household; and,
 - a) Any denial to care for a specific child or youth that includes one of the factors above as the basis for the denial must be documented, must have a clear connection to the ability to meet the needs of the child/youth, and the denial to care must not be detrimental to the health or welfare of the child or youth; or,
 - 3) The county department of human/social services must not delay or deny the placement of a child or youth for adoption or into foster care on the basis of a real or perceived disability, race, creed, religion, color, sex, sexual orientation, gender identity, gender expression, national origin, ancestry, or any communicable disease, including HIV, of the child or youth, unless the delay or denial of the placement is not detrimental to the health or welfare of the child or youth.

10. Additional Requirements

Based on the recommendation of the SAFE™ assessment practitioner and in conjunction with the applicant's completion of the SAFE™ Compatibility Inventory, list characteristics of child(ren)/youth that the foster parent(s) are approved to provide care and/or can best serve. These include but are not limited to age, race, sexual orientation, gender identity or expression, and specific needs (such as medical, physical, and emotional). Information obtained from the compatibility inventory must indicate competencies in parenting, their areas of interest, as well as training or coaching needed to increase skills. This must be in compliance with Section 7.500.2.A.9.h above. These characteristics must be discussed in the recommendations in the SAFE™ assessment. The information must be evaluated and summarized and attached to the SAFE™ questionnaires.

At a minimum, the SAFE™ Compatibility Inventory must be completed with each applicant at initial certification and then every other year thereafter. It is encouraged that someone with knowledge about the child/youth being considered for placement in a foster care home complete the child/youth inventory.

11. Assessment Update

- a. If there are changes in the age and/or special characteristics of the child(ren)/youth that the county will consider for placement with the foster parent(s), a re-evaluation of the family will be completed and the assessment revised.
- b. For any individual eighteen (18) years of age or older entering the home with the intent of residing in the home or providing care in the home, there shall be documentation in the provider record of a review of the following:
 - 1) Child abuse or neglect records check in every state where the adult has resided in the previous five (5) years.
 - 2) A fingerprint-based criminal history record information check completed for the CBI and FBI, and,
 - 3) A comparison search in the court case management system at the State Judicial Department, Using the name and date of birth with available criminal history information. the purpose is to determine any crime(s) for which the adult residing in the home was arrested or convicted and the disposition. This search must be completed regardless of whether the CBI and FBI fingerprint history confirms or does not confirm a criminal history.
 - 4) CBI sex offender and NSOPW sex offender checks, including known names, nicknames, AKAs, addresses, and a map of the location from the respective database to confirm that the address of the foster care home was checked.
 - 5) If a new individual eighteen (18) years of age or older is visiting or living in the foster care or kinship foster care home and intends to stay thirty (30) consecutive days or longer, the following must be completed no later than the time frames listed below from the date the county department of human/social services learned that the adult was in the foster care home.

- a) Within 24 hours, the county must complete CBI and NSOPW sex offender registry checks and document the information into the provider record in the CCWIS and foster care home record.
 - b) Within 24 hours, a Colorado child abuse/neglect check and a check in the State Judicial database must be completed and documented in the provider record in the CCWIS and the foster care home record.
 - c) Within seven (7) business days, the county must request child abuse and neglect records in all other states where the adult has resided in the past five (5) years. Document the requests in the provider record in the CCWIS. Document all responses in the CCWIS and foster care record.
 - d) Within thirty (30) calendar days, a CBI and FBI fingerprint based criminal history record check must be submitted. documentation, including the dates of the CBI and FBI checks, must be entered into the provider record in the CCWIS. Documentation must indicate the results were reviewed and the county department of human/social services did not have concerns. This may be a record of contact (ROC) note. The hard copy records must be located in the foster care home record.
- 12. At any time after the placement of a child/youth, the placing agency may review the SAFE™ assessment, updates, and all background checks of the foster parent except except the FBI criminal history record information report, unless the applicant authorizes it in writing.
- 13. County departments of human/social services are required to share approved adoptive home studies between counties if there is a child(ren)/youth whom the foster parent(s) wants to be considered for possible placement. The foster parent(s) shall make a request in writing providing the name of the county department or child placement agency, address, and name of the person who is to receive the home assessment, and appropriate documents. When the county department or child placement agency that completed the home assessment receives the written request, the written home assessment and appropriate documents shall be sent to the other county within five (5) working days at no cost to the foster parent(s). The county receiving the home assessment shall notify the foster parent(s) within five (5) working days that the county department has received the information.

The county department placing the child/youth for adoption will be responsible for post-placement supervision until the adoption is finalized, unless otherwise negotiated in the placement agreement between the county and the child placement agency.
- 14. A child placement agency shall share the SAFE™ assessment with the county department when a child placement agency foster parent wants to be considered for a possible adoptive placement.
 - a. The foster parent shall make a written request to the child placement agency, identifying the county department, and the name, and address of the county contact that is to receive the SAFE™ assessment and appropriate documents.

- b. When the child placement agency receives the written request, the SAFE™ assessment and appropriate documents shall be sent to the identified county department within five (5) working days.
- c. The county department receiving the SAFE™ assessment shall notify the prospective adoptive parent(s) within five (5) working days that the county department has received the information.
- d. The county department placing the child/youth for adoption will be responsible for post-placement supervision until the adoption is finalized, unless otherwise negotiated in the placement agreement between the county and the child placement agency.

15. Post-Adoptive Services and Connections

The applicant's ability and willingness to assist with possible post-adoptive questions and concerns of the child/youth should be assessed, including, but not limited to:

- a. Questions about the birth family;
- b. Locating and obtaining non-identifying information about the birth family;
- c. Search and possible reunification of the child/youth with the birth family; and,
- d. Willingness to assist the child/youth who was adopted with counseling, if needed, regarding issues related to adoption.

7.500.3 CHILDREN'S/YOUTH'S RESOURCES

- A. Resources for children/youth to be developed by the county department of human/social services are non-relative foster care homes, kinship foster care homes, receiving homes if applicable, and adoption resources.
- B. A diligent recruitment plan shall be submitted to the Division of Child Welfare with the content, format, and time frames prescribed. The county department shall implement the plan and demonstrate good faith efforts and due diligence to recruit and retain families that reflect the diverse communities and identities of all children/youth served by the child welfare agency.
- C. Facilities for children/youth shall be certified, and shall meet necessary local requirements and hold local permits, as applicable. In order to support youth with an independent living stipend, a foster care home may provide a home for a youth that previously resided in foster care in the home on or before the youth's eighteenth (18th) birthday. The youth shall occupy a bedroom alone. The foster care home may accept a negotiated portion of the independent living stipend. Negotiation shall include the youth, caseworker, and foster parent(s).
- D. The county department of human/social services shall audit all current foster care files annually to verify that all required information is present in the file. Following the annual audit, the county department shall attest in writing that all the required information is present.
- E. The county department of human/social services shall develop resources for the twenty-four (24) hour out-of-home care of children/youth who otherwise would be inappropriately placed in jail or detention.

- F. A foster care home or receiving home certified by the county department of human/social services shall receive children/youth only from a county department, and the certifying county shall approve each placement.
- G. The county department of human/social services shall maintain a directory of current, accurate information to identify all available placements. The directory shall include available vacancies, licensed or certified capacity, ages, and gender identity of children/youth accepted by the foster care home, or facility, a description of the level of care which the foster care home or facility can provide, and any special services that are provided.
- H. Care of children/youth in foster care homes when care is also provided for adults with intellectual and developmental disabilities
 - 1. The foster care home shall meet all certification and recertification requirements in Section 7.500.
 - 2. The capacity of the foster care home when adults with intellectual and developmental disabilities are also in care shall not exceed a total of four (4) persons requiring care through the foster care system and/or the adult intellectual and developmental disabilities system.
 - a. When a youth in foster care turns eighteen (18) years of age and is eligible for the adult residential system through the Department of Health Care Policy & Financing (HCPF), the youth shall be considered an adult receiving care for the purpose of capacity. If the county or State Department of human/social services has legal responsibility for the care and placement of the youth turning eighteen (18) years of age, the individual will be considered a child for the purpose of capacity.
 - b. Children/youth in foster care and who are enrolled in the Children's Habilitation Residential Program (CHRP), may live in the foster care home with a combined maximum of three (3) individuals receiving a Home and Community-based Services (HCBS) Waiver. This may include one (1) HCBS-CHRP client and two (2) HCBS-persons with developmental disabilities (DD) OR HCBS-Supported Living Services (SLS) Waiver participants, or two (2) HCBS-CHRP participants and one (1) HCBS-DD or HCBS-SLS Waiver participants living in the same foster care home.
 - c. All children/youth in foster care, children/youth under eighteen (18) living in the home who are not in foster care, and all adults being cared for through the adult intellectual and developmental disabilities system cannot exceed a combined capacity of ten (10).
 - 3. When a youth in foster care in the home turns eighteen (18) years of age (18), if the youth is eligible for the adult residential system, background checks in Section 7.500.2.A.5.a.1, must be completed on the youth and a SAFE™ update must be completed as identified in Section 7.500.A.7.

7.500.31 Foster Care Homes

Foster care homes must be certified by county departments of human/social services, Child Placement Agencies or a federally recognized tribe with a foster care program.

- A. A foster care home provides temporary care for children/youth who must live outside their own homes and are in need of protection and/or supervision, including those children/youth with physical or developmental disabilities when target group eligibility and out-of-home placement criteria are met. Receiving homes are a type of foster care home which provide temporary care of children/youth.
- B. Foster parents shall be recruited who demonstrate a genuine interest in and knowledge of children/youth and a concern for their care and well-being. A county department of human/social services shall recruit within its own county and may recruit in adjacent counties.
- C. Within five (5) working days after initial inquiry, the case worker shall discuss with the prospective applicant(s) general information regarding foster care requirements and the date of the upcoming orientation/information meeting.
- D. An orientation/information meeting shall be held to discuss the application and certification process for prospective foster parent applicants within six (6) weeks after the initial inquiry. the orientation/information meeting may be completed individually.
- E. A foster care home must be certified and pursuant to an application for certification, the county department of human/social services shall assess a foster care home; except:
 - 1. A staff member of a county department of human/social services shall not be certified to operate a foster care home by the county department of human/social services in which the individual is employed due to conflict of interest. A waiver can be filed if there is an undue hardship which creates a substantial and unnecessary burden on the applicant, the family, community served, or the rule is too stringently applied.
 - 2. A staff member of a county department of human/social services may be certified by another county, but may not receive children/youth placed by the county in which the individual is employed.
 - 3. No county department of human/social services shall certify a foster care home of a relative of any staff member of the Child Welfare Division or unit. If the foster care home is certified by another county department, the referring county department may place children/youth in the foster care home upon written agreement of the two (2) county department directors or designees.
 - 4. If a relative of a staff member of the county, who is not an employee of the county Child Welfare Division or unit applies to be a foster care home for the county department, then the application shall be reviewed by the county department director or designee to determine whether a conflict of interest exists and the director or designee shall provide written approval or denial and the justification for the decision. The documentation shall be attached to the application.
- F. A county department of human/social services may receive an application for certification and complete a SAFE™ assessment for an applicant living in an adjacent county only after the county director of the adjacent county or designee gives approval for the other county department to complete the SAFE™ assessment and issue the certificate. County departments may only certify a foster home in a nonadjacent county with the written permission of both county directors or their designees.
- G. Lawful presence in the United States is not required to operate a foster care home. The county department of human/social services shall not verify an applicant's lawful presence to approve an application to operate a foster care home.

- H. A county department of human/social services shall not accept an application to operate a foster care home from an individual who is currently certified by a child placement agency to operate a foster care home until that individual has terminated the certification by the child placement agency.
- I. Reference checks for the applicant and all adults residing in the home:
- Any application accepted by the county department of human/social services for an individual(s) or couple who wishes to be certified to operate a foster care home shall be on the department's approved form.
- Each adult shall sign a release of information; and, the county department of human/social services from whom the certification is sought shall conduct a reference check of each adult residing in the home by contacting all of the child placement agencies and county departments identified before issuing the certificate for the foster care home. This should include and is not limited to:
1. The names and addresses of child placement agencies and county departments where the applicant previously applied or was certified, information about prior or current licensing for child care at the time of the application, the agency that issued the certificate or license, and the type of care the certificate or license authorized.
- J. No director or staff member of a county department of human/social services or child placement agency shall contact or recruit foster care homes currently certified by another county department or child placement agency for the purpose of becoming a foster care home.
- K. A county director or the designee may take the following actions for prospective or current kinship foster care home providers. Decisions shall be made case-by-case and the safety and well-being of a child/youth placed in the foster care home shall not be compromised, the county director or the designee may:
1. Waive non-safety certification standards for kinship foster care providers referenced in 7.708.7 (12 CCR 2509-8);
 2. Require special conditions for certification that address the safety or well-being needs for a child/youth;
 3. Limit or restrict a certificate; and/or,
 4. Require a written agreement for compliance that addresses safety and well-being needs for a child/youth.

7.500.311 Training

In addition to twenty-seven hours of pre-certification training, which includes twelve hours of core training, each foster parent shall be certified in First Aid or the equivalent, and CPR for the ages of the children and/or youth in placement.

- A. Training, Colorado Bureau of Investigation (CBI), Federal Bureau of Investigation (FBI), and Five-Year Child Abuse and Neglect Records Check Requirements.
1. Prior to the placement of a child and/or youth, initial training shall be provided through the statewide core curriculum, county department of human/social services, licensed Colorado child placement agency, or an organization approved by the Division of Child Welfare (DCW).

- a. Each applicant shall complete twelve hours of core training. Core training shall include, at a minimum, the following content areas:
 - 1) General overview of foster care;
 - 2) Administrative rules, laws, and legal issues;
 - 3) The impact of child abuse and neglect on child development;
 - 4) Parenting and family dynamics;
 - 5) Key concepts of child growth and development;
 - 6) Addressing child/youth behaviors;
 - 7) Importance of the team approach;
 - 8) Cultural responsiveness identified in Section 7.701 (12 CCR 2509-8), including individual differences, such as race, ethnicity, sexual orientation, gender identity and expression, ableism, and culture;
 - 9) Discipline;
 - 10) Effects of fostering on the foster family;
 - 11) The importance of maintaining meaningful relationships between children/youth and their parents or legal guardians, including regular visitation;
 - 12) Reasonable and prudent parent standard;
 - 13) Trauma-informed care as specified in Section 7.701.400;
 - 14) Medication administration;
 - 15) Health issues in foster care, including health services available to children and youth in foster care;
 - 16) The right of a child or youth in foster care to have fair and equal access to all available services, placement, care, treatment, and benefits, and to not be subjected to discrimination or harassment on the basis of actual or perceived disability, race, creed, religion, color, sex, sexual orientation, gender identity, gender expression, national origin, ancestry, or any communicable disease, including HIV, of the child or youth;
 - 17) The rights of siblings in foster care, located in § 19-7-203, C.R.S.; and,
 - 18) Understanding the role of a Child Welfare Education Liaison, as described in § 22-32-138(2), C.R.S.

- b. In addition to twenty-seven hours of pre-certification training, which includes twelve hours of core training, each foster parent shall be certified in First Aid and CPR for the ages of the children and/or youth in placement. Initial CPR training must be completed in a classroom with manual demonstration of resuscitation. Individuals in the direct medical or emergency responder field may have CPR and First Aid waived if their immediate supervisor affirms that the applicant is a medical professional that performs these skills..
 - 1. If the governor or local government declares a disaster or emergency, and because of the declared disaster or emergency, the foster parent(s) cannot take the First Aid class in a classroom with the first aid trainer, the First Aid training may be completed online. The foster parent(s) must then complete the classroom training with the first aid trainer as soon as possible, but no later than 45 calendar days after the declared conclusion of the disaster or emergency.
 - 2. If the governor or local government declares a disaster or emergency, and because of the declared disaster or emergency, the foster parent(s) cannot take the CPR class in a classroom with the CPR trainer, and the foster parent(s) has successfully completed a CPR class within the last five (5) years, the foster parent(s) may take the CPR class online. The foster parent(s) must then complete the classroom training with a CPR instructor as soon as possible, but no later than 45 calendar days after the declared conclusion of the disaster or emergency.
 - c. The county department of human/social services shall train foster parents how to determine whether to approve the child's/youth's participation in an extracurricular, enrichment, cultural, or social activity consistent with the reasonable and prudent parent standard, based upon criteria in Section 7.701.200 (12 CCR 2509-8).
 - 2. Ongoing Training
 - a. Each applicant shall have twenty (20) hours of ongoing training every year, except specialized providers outlined in Section 7.708.65.E (12 CCR 2509-8). The training shall be relevant to fostering the children and/or youth being served in the foster care home or kinship foster care home.
 - b. If there are children and/or youth in the home and training is not completed, no additional children and/or youth shall be placed until training is complete. Children and/or youth who are currently in placement shall not be disrupted due to this requirement.
 - B. Exceptions to the Training and CBI, FBI, and Five-Year Child Abuse and Neglect Records Check Requirements

An exception to the rules may be made for emergency child specific placements identified in Section 7.304.21.E.2.f, and for non-emergency child specific placements in Section 7.500.312.D. These are defined as placements where the child/youth has a prior relationship to the applicant.

 - 1. The applicant may have ninety (90) calendar days from the date of application to complete training.

2. In the event of an emergency child specific placement in a previously uncertified home, prior to or at the time of the placement the county department shall receive the completed Original Application to Care for Children and Youth. In addition, the county staff and the applicant shall review and sign the CWS 7A, "Individual Provider Contract for Purchase of Foster Care Services in a Foster Care Home".
- C. If a provisional certificate will be issued because a child specific emergency placement is required in a previously non-certified home, prior to or at the time of the placement the county department of human/social services shall receive the completed Original Application to Care for Children and Youth, and the county staff and the applicant shall review and sign the CWS 7A, "Individual Provider Contract for Purchase of Foster Care Services in a Foster Care Home", and submit fingerprints and current processing fee to the Colorado Bureau of Investigation. When a child/youth that was in foster care is to be placed with a foster parent that is no longer certified, a provisional certificate may be issued if it is in the child's/youth's best interest to return to the foster care home.

The following shall be completed by the county department prior to an emergency child specific placement of a child/youth. The county shall complete a background check for each adult (eighteen (18) years and older) living in the home for the following:

1. Review the court case management system at the State Judicial Department and include a copy in the provider record;
 2. The CBI sex offender registry, the NSOPW operated by the United States Department of Justice, and include a copy in the provider record using:
 - a. Known names, nicknames, AKAs, and addresses of each adult residing in the foster care home; and,
 - b. Address only of the provider's home with a map from the respective databases to confirm that the address of the home has been checked;
 3. CCWIS (Trails) screen prints, including prior names, nicknames, and AKAS, and complete the following requirements in the time frames identified below:
 4. Child abuse/neglect records checks in every state where any adult residing in the home has lived in the five (5) years immediately preceding the date of application shall be initiated no later than seven (7) business days following placement; and,
 5. Fingerprint-based criminal history record information checks from the CBI and the FBI shall be initiated no later than five (5) calendar days after the child(ren)/youth are placed in the home or no later than fifteen (15) calendar days after the child(ren)/youth are placed in the home when documented urgent circumstances exist, consistent with Section 7.304.21.E.2.f (12 CCR 2509-4).
- D. If a provisional certificate will be issued because a non-emergency child specific placement is required in a previously non-certified home:
1. The county department of human/social services shall submit fingerprints to CBI and FBI and complete all other background checks prior to placement of the child/youth, consistent with Section 7.500.2.A.5, except that child abuse and neglect records in other states where an adult has resided in the five (5) years preceding the application shall be initiated no later than seven (7) working days following placement; and,

2. The county department of human/social services shall review the completed "Original Application to Care for Children and Youth" and the CWS-7A "Individual Provider Contract for Purchase of Foster Care Services in a Foster Care Home" with the provider, and collect the signed documents.

7.500.312 Issuance/Denial of Certificate

Every application used in the state of Colorado for employment with a child care provider or facility, or for the certification of a foster home, shall include the following notice to the applicant:

"Any applicant who knowingly or willfully makes a false statement of any material fact or thing in the application is guilty of perjury in the second degree as defined in Section 18-8-503, C.R.S., and, upon conviction thereof, shall be punished accordingly."

Each applicant must provide verification of a social security number (SSN) or an individual taxpayer identification number (ITIN) issued by the federal government.

After the completion of the SAFE™ assessment, the county department shall take one of the following certification actions:

- A. A one (1) year time-limited certificate shall be issued when it is determined that the applicant has completed the necessary training, and is in compliance with the Rules Regulating Foster Care Homes, Section 7.708. The certificate issue date is the date that the assessment is completed and the foster care home is in compliance.
 1. The number and age of children/youth for whom the foster care home is certified shall be determined by the size of the home and the Rules Regulating Foster Care Homes, the applicant's previous experience, parenting skills, and input from the foster parent.
 2. Before a certificate is issued, the county department shall review the foster care contract and agreement with the foster parents. The contract and agreement must be signed by each applicant prior to certification. If a child/youth is placed and care paid by the county department, rules found in the provider rules in Section 7.417.1 (12 CCR 2509-5) shall be utilized.
- B. A provisional certificate shall be issued for child specific homes if the home is temporarily unable to conform to all appropriate regulations upon proof by the applicant that attempts are being made to comply with the appropriate regulations.
 1. A provisional certificate may be issued to allow the applicant to complete required training or in the event that an emergency placement into a previously uncertified home is required. If the applicant does not complete training within six months after application, no additional children/youth can be placed in the home until this requirement is met. The reasons for the issuance of a provisional certificate shall be displayed on the certificate. The Department will not reimburse for children/youth placed in a provisionally certified foster care home more than ninety (90) calendar days from the date of application.
 2. The provisional certificate shall be issued for no more than six months from the date it is determined that time will be needed to comply with the regulations or that care is to begin. Only one original provisional certificate may be issued to a foster home at one location address.
- C. The application shall be closed when the applicant no longer chooses to pursue certification.

- D. The application shall be denied for one or more of the following reasons::
1. Pursuant to Section 26-6-905(10), C.R.S., when the individual or person who resides with the applicant has been determined to be insane or mentally incompetent by a court of competent jurisdiction and, if the court enters, pursuant to Part 3 or Part 4 of Article 14 of Title 15, C.R.S., or Section 27-65-109(4) or 27-65-127, C.R.S., an order specifically finding that the mental incompetency or insanity is of such degree that the applicant is incapable of operating a Residential or day treatment child care facility, foster care home, or child placement agency, the record of such determination and entry of such order being conclusive evidence thereof.
 2. If the person applying for the certificate or a person who resides at the home has been convicted of any of the crimes defined in a-e, below. "Convicted" means a conviction by a jury or a court and also includes a deferred judgment and sentence agreement, a deferred prosecution agreement, a deferred adjudication agreement, an adjudication, and a plea of guilty or nolo contendere. This does not apply to a diversion, deferral or plea for a juvenile who participated in diversion (defined in Section 19-2.5-102, C.R.S.), and does not apply to an adult who successfully completed the child abuse and/or neglect diversion program (defined in Section 19-3-310, C.R.S.).
 - a. Child abuse, as specified in Section 18-6-401, C.R.S.
 - b. A crime of violence, as defined in Section 18-1.3-406, C.R.S.
 - c. An offense involving unlawful sexual behavior, as defined in Section 16- 22-102(9), C.R.S.
 - d. A felony, the underlying factual basis of which has been found by the court on the record to include an act of domestic violence, as defined in Section 18-6- 800.3, C.R.S.
 - e. A felony involving physical assault, battery or a drug-related offense within the five years immediately preceding the date of application for a certificate.
 3. No certificate to operate a foster care home shall be issued by a county department of human/social services if the person applying for such certificate or a person who resides with the applicant at the foster care home has shown a pattern of misdemeanor convictions within the ten (10) years immediately preceding submission of the application. "Pattern of misdemeanor" shall be defined as:
 - a. Three (3) or more convictions of 3rd degree assault as described in Section 18-3-204, C.R.S., and/or any misdemeanor, the underlying factual basis of which has been found by any court on the record to include an act of domestic violence as defined in Section 18-6-800.3, C.R.S.; or,
 - b. Five (5) misdemeanor convictions of any type, with at least two (2) convictions of 3rd degree assault as described in Section 18-3-204, C.R.S., and/or any misdemeanor, the underlying factual basis of which has been found by any court on the record to include an act of domestic violence as defined in Section 18-6-800.3, C.R.S.; or,
 - c. Seven (7) misdemeanor convictions of any type.
 4. Any offense in any other state, the elements of which are substantially similar to the elements listed in 1-3.

- E. The application may be denied or the foster care certification suspended, revoked or made probationary pursuant to Section 26-6-914, C.R.S., for one or more of the following reasons, if the person applying for the certificate or any individual living with the applicant or employed by the applicant:
1. Is convicted in Colorado or in any other state of any felony, or has entered into a deferred judgment agreement or a deferred prosecution agreement in Colorado or in any other state to any felony, other than those offenses specified in Section 26-6-905(8), C.R.S., or child abuse, as specified in Section 18-6-401, C.R.S., the record of conviction being conclusive evidence thereof, notwithstanding Section 24-5-101, C.R.S.; or,
 2. Is convicted of third degree assault, as described in Section 18-3-204, C.R.S., any misdemeanor, the underlying factual basis of which has been found by the court on any record to include an act of domestic violence, as defined in Section 18-6-800.3, C.R.S., any misdemeanor violation of a restraining order, as described in Section 18-6-803.5, C.R.S., any misdemeanor offense of child abuse as defined in Section 18-6-401, C.R.S., or any misdemeanor offense in any other state, the elements of which are substantially similar to the elements of any one of the offenses described in this paragraph; or,
 3. Uses any controlled substance, as defined in Section 8 of the Colorado Revised Statutes including retail marijuana, or consumes any alcoholic beverage during the operating hours of the facility or is under the influence of a controlled substance or alcoholic beverage during the operating hours of the facility; or,
 4. Is convicted of unlawful use of a controlled substance as specified in Section 18-18-404, C.R.S., unlawful distribution, manufacturing, dispensing, sale, or possession of a controlled substance as specified in Section 18-18-403.5 or 18-18-405, C.R.S., or unlawful offenses relating to marijuana or marijuana concentrate as specified in Section 18-18-406, C.R.S.; or,
 5. Consistently fails to maintain standards prescribed and published by the Colorado Department of Human Services; or,
 6. Furnishes or makes any misleading or any false statement or report to the Colorado Department of Human Services; or,
 7. Refuses to submit to the Colorado Department of Human Services any reports or refuses to make available to the Department any records required by it in making an investigation of the facility for licensing purposes; or,
 8. Fails or refuses to submit to an investigation or inspection by the Colorado Department of Human Services or to admit authorized representatives of the Department at any reasonable time for the purpose of investigation or inspection; or,
 9. Fails to provide, maintain, equip, and keep in safe and sanitary condition premises established or used for child care pursuant to standards prescribed by the Colorado Department of Public Health and Environment and the Colorado Department of Human Services or by ordinances or regulations applicable to the location of the foster care home; or,
 10. Willfully or deliberately violates any of the provisions of Part 9 of Foster Care, Residential, Day Treatment, and Child Placement Agency Licensing Act; or,

11. Fails to maintain financial resources adequate for the satisfactory care of children served in regard to upkeep of premises and provision for personal care, medical services, clothing, and other essentials in the proper care of children; or,
 12. Is charged with the commission of an act of child abuse or an unlawful sexual offense, as specified in Section 18-3-411(1), C.R.S., if:
 - a. The individual has admitted committing the act or offense and the admission is documented or uncontroverted; or,
 - b. The Administrative Law Judge finds that such charge is supported by substantial evidence; or,
 13. Admits to an act of child abuse or if substantial evidence is found that the licensee, person employed by the licensee, or person who resides with the licensee in the foster home has committed an act of child abuse, as defined at 19-1-103(1), C.R.S.; or,
 14. Is the subject of a negative licensing action.
 15. Misuses funds: the individual(s) making the expenditure decision had deliberate, willful, and intentional disregard for the fiduciary responsibility for how public funds are to be used for children placed in foster care or adoptive homes.
- F. A kinship foster care certificate shall be issued when it is determined the applicant has met requirements outlined in Section 7.500.31.
- G. Denial of an original or renewal application.
1. When an original or renewal application is denied, the county department of human/social services must notify the applicant in writing of the denial and mail it to the address listed on the application. The denial letter should be sent by certified mail to verify the date the applicant received the denial letter. In addition to sending the letter by certified mail, the county department may also use another method to communicate the information to the applicant. If the applicant chooses to appeal the decision, a request by the applicant for a hearing must be made in writing to the county department within thirty (30) calendar days after the applicant received the notice of denial.

7.500.313 Supervision and Support

- A. Supervision and support of the identified needs of the foster home shall occur according to the following:

A face-to-face contact shall be made in the foster care home with at least one (1) foster parent present at least once a month while children/youth are placed in the foster care home. Documentation of such contact shall be entered in the CCWIS in the contacts for the provider and/or the children/youth placed in the foster care home. The purpose of the contact is to provide support and answer questions that the foster parent has about the program, to indicate to the foster parent any concerns the county department of human/social services has about the operation of the foster care home, and to observe child care/interaction when possible

1. If the face-to-face contact is not possible, the reasons must be documented in the provider record and an alternate contact must be made. The maximum number of allowable days between face-to-face contacts shall not exceed forty-five (45) calendar days.

2. For a two (2) foster parent foster care home, efforts should be made to meet with both foster parents. If a foster parent is unable to be present in the foster care home, the reason a face-to-face contact is not feasible shall be documented in the CCWIS. All foster parents must have face-to-face contact in the foster care home quarterly during the year and documented in the CCWIS. For exceptional circumstances, a waiver may be submitted.
 3. If a child/youth is not present during the support visit, and it is documented, the observation of child care/interaction is not needed. At a minimum annually, the support caseworker must observe the interaction between the foster parent, the child/youth in foster care, and any other child/youth living in the foster care home.
- B. Prior to recertification, an annual on-site visit must be made to the foster care home to prepare for recertification. Written documentation of the visit must be given to the foster parent to document any necessary action needed to complete recertification. The documentation must be maintained in the provider file, including the CCWIS.
- C. If a county department of human/social services no longer chooses to place children/youth in the foster care home, the county department shall follow one or more of the following procedures:
1. The county department must send a written statement to the foster parent explaining that the county department will no longer place children/youth in the foster care home and that the foster parent must not accept any children/youth for care from other sources; or,
 2. The county department must meet with the foster parents and ask them to sign a statement that they are withdrawing from the foster care program or, the county department must send a letter to the foster parents requesting the foster parents to sign and return a statement that they are withdrawing from the foster care program.
 3. The county department shall close the certification and provide the foster parent with written notice of the right to appeal.

7.500.314 Renewal Notice

The county department of human/social services shall send a renewal notice to the foster parents at least ninety (90) calendar days prior to the expiration of a certificate.

- A. If the foster parents wish to continue to provide care, the renewal notice shall be completed and returned to the county department prior to the expiration of the certificate.
- B. If the renewal notice is received by the county department prior to the expiration of the certificate, the renewal notice is timely and the certificate continues to be valid until action is taken by the county department.
- C. If the renewal notice is received after the expiration of the certificate, the renewal notice is untimely. If the county department plans to pursue recertification the renewal notice may be acted upon as an original application or the county may follow the appropriate procedure(s) referenced in Section 7.500.315.B.1-3.

7.500.315 Recertification Action

A. Timely renewal means a renewal application notice was received by the county department prior to or on the date of the expiration of the certificate. If all requirements have not been completed the foster care home service shall be entered into the CCWIS and the approval status is entered as pending for no more than ninety (90) calendar days from the date received. The county department must complete the following actions to determine if continued certification is appropriate:

1. Review the health assessment.

If the governor or local government declares a disaster or emergency, and because of the declared disaster or emergency the medical exams for the foster parent(s), other children, and other adults residing in the home cannot be completed for the child/youth in the required time frame, the medical exam(s) must be completed as soon as possible, but no later than 45 calendar days after the declared conclusion of the disaster or emergency.

2. Complete searches on the CBI sex offender registry and the NSOPW operated by the United States Department of Justice and include a copy in the provider record using the following criteria, at a minimum:

- a. Known names, nicknames, AKAs, and addresses of each adult residing in the foster care home; and,
- b. Address only, of the foster care home, including a map from the respective database to confirm that the address of the foster care home has been checked.

3. Review the following information, for the applicant(s) and all adults residing in the foster care home. as applicable, provide a copy in the provider record of:

- a. Any child abuse and/or neglect referrals or assessments in the previous year;
- b. Any arrest or conviction records in the previous year;
- c. Any other involvement with the foster family with the county department; and,
- d. The Colorado court case management system.

4. If the foster parent or any adult living in the foster care home left the state for three (3) consecutive months or longer, a new FBI fingerprint-based criminal history record information check shall be conducted.

5. Evaluate the foster parent's current and past compliance with the Rules Regulating Foster care Homes.

6. Conduct an annual onsite visit in accordance with Section 7.500.313.A.2-4;

7. Complete a SAFE™ update to document the status of the foster family, including changes that have occurred and signature and date from Section A of the update form.

8. Complete a CWS-7A, "Individual Provider Contract for Purchase of Foster Care Services in a Foster Care Home"; and,

9. If all requirements are met, a one year time-limited certificate shall be issued. The certificate issue date is the date that the foster care home is in compliance with the "Rules Regulating Foster Care Homes"; or,
 10. If the renewal application for the certificate is denied, the process for denial of a renewal application is the same as the process for denial of an original application.
 11. The certificate information shall be entered into the CCWIS.
- B. A renewal application notice is untimely if it is received after the date the foster care home certificate expired. Section 7.406.1.C (12 CCR 2509-5) authorizes state reimbursement when the child is with a provider in possession of a valid certificate or license, when one is required. No additional children/youth may be placed in the home until it is fully certified. Children/youth who are currently in placement are not disrupted if the county department wishes to continue certification. The options are:
1. The foster care home service may be entered into the CCWIS with the approval in pending status. All certification requirements must be completed within 15 working days; or,
 2. If completion of all requirements will take longer than fifteen (15) working days an emergency appeal may be filed by the certifying county department. If the emergency appeal is denied, the home is not certified and is considered closed.
 3. A provisional certificate may be issued only if none was previously issued for the same address. The foster care home must be certified within ninety (90) calendar days or the foster care home shall be closed.
 4. In any subsequent certification year if an untimely renewal application notice is received after the expiration of the certificate, the foster parent must complete an original application and meet all certification requirements.
 - a. A provisional certificate may be issued only if none was previously issued for the same address. Follow 7.500.315.B.3; or,
 - b. If the county plans to certify the home, Section 7.406.1.C applies.
- C. A foster care home certificate is no longer valid whenever one of the following situations exists:
1. A foster family moves to a new address.
 2. A foster parent decides to withdraw from the foster care program and confirms it in writing.
 3. A certificate has been revoked or the renewal application has been denied.
 4. A certificate has expired and no action is taken pursuant to 7.500.315.B.1-3.

7.500.316 Inter-county Transfer or Move of A Foster CARE Home

- A. When a foster family moves to a new location within the county of residence or within a new county, the family must make a timely notification at least thirty (30) calendar days prior to the move to the current certifying county by submission of an original application.

- B. When a foster family moves to a new residence in the same county, the county department of human/social services shall inspect the new residence to assure compliance with the Rules Regulating Foster Care Homes, Section 7.708 (12 CCR 2509-8).

Certification action which results in issuance of a certificate shall be completed in the following way:

1. A certificate shall commence the date that the county department determines that there is compliance with the Rules Regulating Foster Care Homes, Section 7.708.
 2. The county department may issue a child specific provisional certificate if the foster care home is temporarily unable to conform to all appropriate rules of the Rules Regulating Foster Care Homes, Section 7.708, upon proof by the foster parents that attempts are being made to comply with the appropriate regulations. The reasons for the issuance of the provisional certificate will be displayed on the certificate. The provisional certificate may not exceed ninety (90) calendar days from the date it is determined that time will be needed to meet the rules. Only one original provisional certificate may be issued to a foster care home at one location address. The department will not reimburse for children/youth placed in a provisionally certified foster care home more than ninety (90) calendar days from the date of the application.
- C. When a foster family with children/youth in foster care placement moves to another county, the county of original residence may forward the record on the foster care home and children/youth in placement to the county where the foster family moves and ask that county to certify and supervise the home in the new location.
- D. When a foster family with children/youth in foster care placement moves to an adjoining county, the county of original residence shall immediately or within two (2) business days, notify the adjoining county and may ask permission to continue to certify and supervise the foster care home. Upon notification from the second county of its approval, certification assessment of the foster care home shall be completed by the original county, and a provisional certificate issued.
- E. If a foster care home transfers to a county department from another agency or tribal foster care program, a SAFE™ assessment update may be completed if the previous entity provides the original SAFE™ assessment and all subsequent updates.

7.500.317 Response to a Notification of an Allegation of Abuse and/or Neglect or Another Type of Concern in a County Foster Care Home

- A. When notification of a referral alleging abuse or neglect in a county foster care home is received and it has not been accepted for assessment, the certifying county foster care support worker shall take the following actions:
1. Review the referral to determine if there are certification concerns identified.
 - a. If no certification concerns are identified, document receipt of the referral in resource notes in the Comprehensive Child Welfare Information System (CCWIS).
 - b. If concerns are identified, the foster care support worker will complete a thorough review of the circumstances and the incident. This includes the following:
 - 1) Meet with the foster parent;

- 2) Identify any corrections or modifications that need to be incorporated and provide any training, or technical assistance to mitigate concerns; and,
 - 3) Document any actions taken.
- B. When notification of a referral alleging abuse and/or neglect in a county foster care home has been accepted for assessment, the certifying county's foster care support worker and/or designated staff shall take the following actions:
 1. A determination shall be made as soon as possible, in conjunction with recommendations from the assessment caseworker, whether children/youth should remain in placement in the foster care home; and,
 2. Whether other children/youth should be placed in the home while the assessment is in progress.
 3. The results of the assessment shall be summarized and included in the foster care home record maintained by the county department. this may be in the form of the final written report completed by the county responsible for the assessment.
 4. Upon receipt of the written report from the county responsible for the assessment of child abuse and/or neglect, the certifying county shall make a determination within three (3) working days regarding continued use of the home. The foster care home shall be notified in writing of the decision and the notification recorded in the foster care home record maintained by the certifying county. If the foster care certificate is closed, suspended, or revoked, the county department shall document this in the CCWIS.
 5. The final decision regarding future use of the foster care home shall be confirmed in writing to the foster parent and recorded in the foster care home record within ten (10) working days of the receipt by the certifying agency of the final written report of a child abuse and/or neglect assessment.
 - a. If the county department continues certification of a foster care home where there has been a confirmed report of medium or severe child abuse and/or neglect, written justification and additional follow-up must be identified. The county director or designee must sign the statement that includes the justification and follow-up.
 - b. The county department must notify the Child Welfare Director and Foster Care Program Administrator at the Division of Child Welfare in writing within three (3) business days and submit the justification and follow-up for maintaining the foster care home certification.
 - c. The statement must be documented in notes in the referral for the provider.
 6. Administrative proceedings to modify, limit, or revoke the certificate will be initiated by the certifying agency within 30 calendar days of notification of any adverse decision regarding continued use of the foster care home.

7. After the State Institutional Abuse Review Team (IART) evaluates the finding and assessment by the county responsible for the assessment, the State Institutional Abuse Review Team may recommend a follow-up review. A follow-up is a review of the original assessment completed by the certifying county to determine if the agency has culpability based on practices, policies, and procedures, If any certification requirements were violated in the foster care home, or by the foster care providers. The county shall enter a report in the CCWIS within thirty (30) calendar days of the receipt of the State Institutional Abuse Review Team's request. Follow-up must be documented in the provider record.
- C. Other types of complaints or identified concerns shall be reviewed and addressed by the certifying county. The county's review of the concern shall be documented and, if applicable, what corrections or modifications the foster care home must make. The results shall be confirmed in writing within ten (10) working days to the foster parent and documented in the provider record in the CCWIS.

7.500.324 Dual Licenses and Certificates

- A. A home may be licensed to provide child care and certified for foster care simultaneously. This is known as a dual care provider. Dual care providers utilized by county departments of human/social services are certified by the county for foster care and licensed by the State for child care.
 1. If a foster care home wishes to accept children for child care on a regular basis, the provider shall apply for a license for child care from the Colorado Department of Early Childhood and pay the prescribed fee.
 2. If the foster care home wishes to provide child care, the certifying agency must approve.
 - a. The county department shall complete a justification statement describing how the needs of all children/youth will be met and protected in this home if certified for foster care and licensed for child care, which shall be filed in the case record.
 - b. The county department shall document in the case record the specific number of children for combined use of the home, specific number of children as a child care home, and a specific number of children/youth in foster care.
 3. A home that is licensed for child care may only be certified for foster care for one (1) child/youth or for a group of siblings.
 4. A county department that has a foster care home that is licensed for child care must notify the Colorado Department of Early Childhood when any of the following situations occur in the foster care home:
 - a. A complaint is received; or,
 - b. A child abuse and/or neglect assessment occurs; or,
 - c. A follow-up review occurs; or,
 - d. A child/youth in foster care is removed from the home because of abuse and/or neglect allegations; or,
 - e. The foster care home certificate is revoked or closed.

5. A county department that has a foster care home that is also licensed for child care must submit the following reports to the Colorado Department of Early Childhood.
 - a. All complaint reports; and,
 - b. All child abuse/Neglect assessment reports; and,
 - c. All follow-up review reports.

7.500.33 SAFE™ Assessment Practitioner Qualifications (Home Study)

The following are the requirements for practitioners and their supervision when completing home study assessments.

- A. County departments of human/social services staff or contract vendors must meet the following educational qualifications:
 1. A SAFE™ assessment practitioner must have a bachelor's, master's, or doctorate degree from a college, university, or higher education institution in a human service or mental/behavioral health related field, such as psychology, sociology, human development, family studies, social work, criminal justice, and/or counseling; and be supervised by an individual who meets both these educational requirements and work-related requirements of three (3) years experience in child placement, child protection, foster care, or adoption.
- B. All SAFE™ assessment practitioners completing a SAFE™ home study must receive supervision for each SAFE™ assessment by a supervisor trained in SAFE™ protocol, SAFE™ supervision, and who meets the educational and work-related requirements in 7.500.33.A.1. Approved practitioners completing a SAFE™ home study must utilize the SAFE™ supervisory process as outlined by the Consortium for Children. If the SAFE™ supervision protocol is not followed, the home study will not be considered a valid SAFE™ home study. There is no exception.
- C. All individuals functioning as a SAFE™ supervisor must have completed the SAFE™ two-day certification training, SAFE™ supervisor training, and completed SAFE™ refresher trainings timely.
- D. SAFE™ assessment practitioners who are supervisors must also receive supervision from a separate qualified SAFE™ supervisor for each SAFE™ assessment completed. The supervisor verifies that this home study was conducted with due professional diligence and in accordance with Colorado law and the rules adopted by the Colorado Department of Human Services.
- E. The Colorado Department of Human Services is required to maintain an approved contract vendor list of home study report providers.
 1. All SAFE™ assessment practitioners that are on the contract vendor list must provide verification of a college, university, or higher education transcript, resume, attestation of individual responsibilities, SAFE™ assessment training, SAFE™ supervisor training (if applicable), and current individual liability insurance.
 - a. Individual contract vendors must submit professional liability insurance in an amount reasonable as related to their exposure to risk.
 2. An individual contract vendor must provide a current risk assessment to the Colorado Department of Human Services if requested.

7.500.34 (NONE)

7.500.35 Adoption Resources

7.500.351 Applications and Adoption Services

- A. When a SAFE™ assessment or SAFE™ update is intended for adoption, the assessment must be completed ninety (90) working days from receiving the completed background checks.

County departments of human/social services and child placement agencies shall be required to report to the court the results of a fingerprint-based criminal history records check when it reveals that the prospective adoptive parent was convicted of a felony or misdemeanor of:

1. Child abuse or neglect;
2. Any crime against a child, including child pornography;
3. Any crime, the underlying factual basis of which has been found by the court on the record to include an act of domestic violence, as specified in Section 18-6-800.3, C.R.S.;
4. Violation of a protective order, as described in Section 18-6-803.5, C.R.S.;
5. Any crime involving violence, rape, sexual assault, or homicide; and,
6. Any felony drug-related conviction within, at a minimum, the past five years. Felony drug-related convictions at least ten years prior to the application do not need to be reported.
7. No person convicted of a felony offense shall be allowed to adopt a child/youth, except a person may be allowed to adopt a child/youth if:
 - a. The applicant has had no further arrests or convictions subsequent to the original conviction;
 - b. The applicant has not been convicted of a pattern of misdemeanor, as defined by rule of the State Board of Human Services at Section 7.500.312.D.3.a-c; and,
 - c. The court enters a finding consistent with Section 19-5-210(2)(d), C.R.S., that the adoption is in the best interests of the child.

B. Recruiting and Inquiries

1. The county department of human/social services recruits adoptive homes that reflect the racial, ethnic, cultural, and linguistic backgrounds for all waiting children/youth. The county department shall make reasonable efforts to recruit families of the same ethnic, cultural, and racial background as the children/youth awaiting adoption pursuant to the Multiethnic Placement Act (42 U.S.C. 5115a)
2. The county department provides information about adoption services within the county department and services available through other adoption agencies and organizations. Requests for SAFE™ assessments for children/youth from private sources shall be referred to private agencies.

3. Prospective adoptive parent(s) approved for intercountry adoption and waiting for adoptive placement can be simultaneously approved for adoption with public and a licensed private adoption agency as long as both agencies are aware and in agreement with the arrangement.
 - a. The prospective adoptive parent(s) shall inform the public agency of its current relationship with the licensed private child placement agency that approved it for intercountry adoption.
 - b. The prospective adoptive parent(s) shall sign a release of information from the private child placement agency to be provided to the county department of their choice. The released information shall include, but not be limited to, the following:
 - 1) Current SAFE™ assessment by the private agency;
 - 2) Documentation of training completed by the prospective adoptive parent(s).
 - c. The county department shall complete a SAFE™ update and clarify the characteristics of children/youth for whom the prospective adoptive parent(s) would be approved using the county department's approval process.
 - d. The county department must obtain the following new information from the prospective adoptive parent(s):
 - 1) References;
 - 2) Health assessments;
 - 3) Background check for each adult age eighteen (18) and older living in the home, for the following:
 - a) Fingerprint-based criminal history checks from the CBI and FBI as required in Section 7.701.33 in all circumstances.
 - b) Child abuse/neglect records in every state where the adult has resided in the five (5) years preceding the date of application.
 - c) The CBI Sex Offender and NSOPW operated by the United States Department of Justice by:
 - i. Known names, nicknames, AKAs, and addresses of each adult residing in the home; and,
 - ii. Address only of the home, including a map from the respective databases to confirm it has been checked.

- d) A comparison search on the Colorado Court Case Management system at the State Judicial Department, using the name and date of birth with available criminal history information for each adult eighteen (18) years and older living in the home. The purpose is to determine any crime(s) for which an applicant or other adult residing in the home was arrested or convicted and the disposition. This search shall be completed regardless of whether the CBI and FBI fingerprint history and record confirms or does not confirm a criminal history.
 - e) Within ninety (90) days prior to finalization of an adoption, complete all background checks including: CCWIS, Colorado court case management system, CBI and FBI fingerprint based criminal history record information check, CBI sex offender check and NSOPW.
- 4) All background checks shall be documented in the CCWIS.
- a) The county department of human/social services shall continue to follow its policies and procedures in considering the prospective adoptive parent(s) for potential placements.
 - b) The prospective adoptive parent(s) shall sign an agreement with both the public and private agency stating that the prospective adoptive parent(s) will inform either agency when there is a potential placement. The agreement shall state the following:
 - i. All parties understand and agree the home of the prospective adoptive parent(s) is not available for any new placements for a minimum of six (6) months following the date that the child/youth is placed in the home;
 - ii. At the end of the six (6) month period that the home is not available for new placements, all parties including the prospective adoptive parent(s) and both the public and licensed private adoption agency shall determine and document whether the non availability period should continue;
 - iii. The placing agency shall complete a SAFE™ update regarding the progress and appropriateness of the new placement and make recommendations for any further adoptive placements;
 - iv. The non-placing agency shall complete a SAFE™ update addressing the placement of a child/youth into the prospective adoptive home.
 - c) The county department shall advise the prospective adoptive parent(s) that the SAFE™ assessment completed for county departments is not suitable to determine the appropriateness for intercountry adoption.

The county department shall advise the prospective adoptive parent(s) that a private licensed adoption agency must complete the SAFE™ assessment as referenced in 7.351.4.

- d) The county department shall assure that the required information is included in either the private agency's SAFE™ assessment or in the SAFE™ update completed by the county department.

5) Applications

- a) The county department of human/social services shall only accept applications for the adoption of children/youth from persons who meet the requirements of Colorado statute, who have expressed an interest in the placement of a child/youth through the county department.
- b) The applicants shall be informed that submitting an application does not guarantee that a SAFE™ assessment will be completed or a child/youth placed with them.
- c) The county department shall notify the prospective adoptive parent(s) of the disposition of the application within six (6) months.
- d) Lawful presence in the United States is not required to approve an application for a child/youth's adoption. The county department of human/social services shall not verify a prospective adoptive parent's lawful presence to approve an application for a child/youth's adoption.
- e) Requirements for Adoption
 - i. A SAFE™ assessment as outlined in Section 7.500.2 must be completed prior to the child/youth being placed with the intent of adoption.
 - ii. The assessment must include a visit to the home and separate interview of the potential adoptive parent(s) and all other adults living in the home shall be interviewed.
 - a. As part of the assessment, the SAFE™ practitioner must conduct a minimum of one (1) joint interview with all applicants, one (1) individual interview with each adult member of the household, and an age/developmentally appropriate interview with each child/youth residing in the home. For a single applicant, a minimum of two (2) interviews is required; and,
 - b. The SAFE™ practitioner must ensure the second interview, and any subsequent interviews, of the adults, shall not be performed until at least three (3) calendar days after the previous interview.

6) Approval

- a) An applicant(s) shall be made aware of their standing with the agency. If there are serious concerns during the SAFE™ assessment process which cannot be resolved, the SAFE™ assessment practitioner shall discuss these concerns and the decision to proceed with the applicant(s). The applicant(s) shall be encouraged to withdraw if this is advisable. If the applicant(s) does not withdraw, then the county department shall send a denial letter with information about the right to appeal.
- b) When a SAFE™ adoption assessment has been approved, the county department shall:
 - i. Inform the applicant in writing of the final decision regarding their application within fifteen (15) working days from the date the decision is made.
 - ii. Send written notification to the applicant, which includes the following:
 - a. The application to adopt is approved.
 - b. The age, gender, and any special characteristics of the child(ren)/youth which will be considered.
 - c. Any other conditions of the approval that pertain.
 - d. The SAFE™ adoption assessment is available only for the adoption of a child(ren)/youth placed by a Colorado county department of human/social services or child(ren)/youth placed in cooperation with an agency licensed to place children/youth for adoption.
 - e. The applicant's right to a review of the decision by the county director or the director's designee of the characteristics of the child/youth for which the prospective parent(s) is approved.
 - f. The applicant's responsibility to inform the county department of significant changes of circumstances which could impact an adoption.

7) Denial of applicant based on assessment

The decision to deny approval of the applicant's SAFE™ adoption assessment shall be a joint decision involving at least the caseworker and the supervisor. The county department of human/social services shall complete the following:

- a) Send the applicant(s) written notice of the denial within fifteen (15) working days of the decision.

- b) The county department shall have a face-to-face meeting to discuss the reasons for the denial at the applicant's request.
- c) Notify the applicant of the right to a review by the county director or the director's designee if the applicant(s) is dissatisfied with the decision.

8) **Reevaluation of assessment**

If a child/youth has not been placed in the prospective adoptive home within one (1) year from the date of the approval of the SAFE™ adoption assessment, the assessment shall be reevaluated to determine if the home is to remain active for consideration of a child/youth, and annually thereafter until a placement is made or the case is closed. Reevaluation shall consist of at least the following:

- a) A current health assessment is required for each family member. The assessment is valid for a maximum of two (2) years. Health assessments may be completed by a licensed doctor of medicine or osteopathy, physician assistant, or nurse practitioner.

If the county department has concerns about the health of any family members prior to the expiration date of the previous health assessment the county department may require an updated health assessment.

- b) Documentation of any changes in the home and family, including but not limited to finances, employment, housing, illnesses, pregnancy, and current information, where applicable, on growth, development, and activities of children/youth in the home.
- c). Changes, if any, in the preferences in the characteristics of the child/youth to be adopted, the reason for the change, and the applicant's capacity to provide for the long term needs of the child/youth currently identified.
- d) Determination whether to continue approval of the home.

9) **Second or additional update to assessments**

If a prospective adoptive parent chooses to be considered for another adoption with the same licensed child placement agency, the following applies:

- a) If the last SAFE™ assessment is within three (3) years of the approval date of the original SAFE™ assessment, a subsequent SAFE™ update shall be completed. The update shall include at least one (1) joint interview with the prospective adoptive applicants or an interview with the prospective adoptive applicant, and one (1) interview with each adult member of the household, and an age/developmentally appropriate interview with each child/youth. at least one (1) interview with the family must be conducted in the home. The individual interviews with the adoptive applicants must be completed on the same date. All interviews shall be documented.
 - b) If the period of time since the approval of the original SAFE™ assessment is longer than three (3) years, a full SAFE™ assessment shall be completed with emphasis on adoption.
- 10) Update to assessments when the applicant chooses to be considered for an adoption through a different licensed child placement agency:
 - a) When the full SAFE™ assessment is received directly from the originating agency with an update with an approval date of less than one (1) year, the new agency may either complete:
 - i. A SAFE™ update of the original SAFE™ assessment or, a full SAFE™ assessment.
 - ii. If the SAFE™ assessment or update approval date is more than one (1) year old, a full SAFE™ assessment must be completed as prescribed in Section 7.500.2.
- 11) Foster Parent Assessments
 - a) The SAFE™ assessment along with a SAFE™ update focusing on the ability of the parent to meet the specific needs and to parent the child(ren)/youth placed for adoption will be accepted for adoption. the caseworker will check the adoption box on the state prescribed application.
 - b) The caseworker shall discuss the Adoption Assistance Program with the foster parent, focusing on the needs of the child/youth and the foster parent's ability to meet those needs as addressed in Section 7.306.4 (12 CCR 2509-4).
- .12) Intercountry Adoption
 - a) Non-public intercountry adoptions shall only be completed according to the Children's Code and Section 7.710 (12 CCR 2509-8).

7.500.352 Fees

- A. The county department of human/social services shall inform individuals applying to adopt the fees that may be involved in adopting through the county. Fees are based on the ability to pay for the adoptive services rendered by the county department which provides the SAFE™ assessment. Fees may be waived. A fee may be charged to a family at the discretion of the county department.
- B. A non-discriminatory fee structure shall be established by the county department. The fee is established on ability to pay or cost of service, whichever is less.
- C. Fees will be charged to out-of-state prospective adoptive parents seeking to adopt a child/youth from Colorado or prospective Colorado parents seeking to adopt a child/youth from another state, in accordance with the adoption services provided. If the child/youth being placed is in the custody of a public agency and receiving services through the Interstate Compact on the Placement of Children (ICPC), the prospective adoptive parents shall not be charged a fee.
- D. No fee is charged to individuals or families whose income is below the poverty level, as established by the United States Department of Agriculture (USDA), or who are recipients of Supplemental Security Income (SSI), Colorado public assistance programs, or state/county-funded assistance payments.
- E. Fees may be waived in whole or in part by the county department which provides the SAFE™ assessment and other related adoption services when such fees pose a barrier to the adoption of children/youth for whom a county department is financially responsible. If the fee is waived, the waiver should be documented in the county record. If a prospective adoptive parent, for whom the fee has been waived, decides not to adopt a child/youth then the prospective adoptive parent may be required to pay the appropriate fee.
- F. When an assessment is court ordered, the prospective adoptive parents may be charged a fee for a home assessment, supervision, or a report to the court in accordance with the above fees.

7.500.353 Case Records

- A. The Adoptive Family Record will contain all documentation required for approval for adoption, including but not limited to the application, SAFE™ assessment, SAFE™ updates, required background checks, and medical information.
- B. The county department maintains a record for each adoptive family approved for the placement of a child/youth. Upon completion of the legal adoption of a child(ren)/youth, the record shall be closed and maintained in a secure location at the county department in order to preserve confidentiality as required by § 19-5-305, C.R.S.
- C. Any material contained in the record regarding a child/youth placed with and adopted by the family shall be maintained at the county department with the adoption record. After the decree of adoption has been issued, the county department shall not retain information in an open record which will link the adoptive family with the child's/youth's original identity except information necessary to maintain the adoption assistance record.
- D. Access to Adoption Information and Records
 - 1. Prior to filing a petition to adopt:
 - a. The records of prospective adoptive parents are confidential, as provided in § 26-1-114(1), C.R.S.

- b. The county department shall not provide records of prospective adoptive parent(s) to an individual or agency, other than another Colorado county department involved in the adoptive process, without the written permission of each prospective adoptive parent if both are involved in the adoption process.
 - c. The county department shall provide a copy of the SAFE™ assessment to the prospective adoptive parent for the purpose of reviewing the accuracy of the assessment.
- 2. After filing a petition to adopt:
 - a. The county department of human/social services will provide court reports on adoptions to the prospective adoptive parents as outlined in Colorado statute § 19-5-209(1), C.R.S.
 - b. Records and information received by the county department during relinquishment and/or termination of parental rights in adoption proceedings shall be confidential pursuant to Colorado statute § 26-1-114(1), C.R.S.

7.500.354 Correspondence with Out of State Agencies

All correspondence with an out-of-state child placement agency regarding adoption shall be forwarded to the selected Colorado Child Placement agency for routing to the out-of-state child placement agency.

7.500.355 Purchase of Adoption Services from Licensed Child Placement Agency Providers

The county department of human/social services may elect to purchase any of the following from licensed child placement agency providers: pre-placement services, SAFE™ assessment services, placement services, post-placement services, and post-finalization/permanency services.

The county department must have a written and signed contract with the licensed child placement agency that details the services to be provided, the fees to be paid for the services, and the appropriate time frames for the services to be concluded.

A. Eligible Cases

- 1. Children/youth for whom adoption services may be purchased by a county department shall be children/youth who are available for adoption, and for whom an adoptive home is not available, and who are listed with the Colorado Adoption Resource Registry (CARR).
- 2. All children/YOUTH in need of adoptive placement must be listed with the CARR or a request for exclusion must be submitted to the CARR (See Section 7.306.13 in 12 CCR 2509-04).
- 3. In the case of a child/youth who is available for adoption and has complex needs and the county department wishes to purchase or contract for pre-placement assessment, the county may do so prior to the child/youth's information being submitted to the CARR.
- 4. Services for children/youth with complex needs who are not yet available for adoption may be purchased by a county department when in the judgment of that department it is anticipated and likely that the child/youth will become available for adoption. Adoption services purchased for these children/youth shall be limited to pre-placement, recruitment, and home assessment services.

B. Case Referral

1. Eligible cases shall be referred to the licensed child placement agency provider for purchase of part or all of the adoption services.
2. In its agreement, the county department shall require that the licensed child placement agency provider write a case plan for providing adoptive services to the referred child/youth reflecting the joint planning. This plan shall include objectives, specific desired outcomes, and target dates. Regular progress reports shall be submitted to the county department by the agency provider, and shall address all of the requirements of the case plan.

C. Service Hour Rate

Payment for purchased adoption services shall be on an actual cost basis, up to a specified maximum for each adoption component. The rate shall be based on the base service hour cost of the agency provider, which is the allowable program costs divided by case service hours in the program (i.e., hours spent by professional staff in performing adoption services on a case).

D. Provider Billing and Fees

1. Billing for adoption services provided shall be case-specific and component-specific. That is, the county department shall accept bills from the agency provider only on those cases on which it has entered into an agreement with the county department and only for the component(s) of the adoption process which the county department has agreed to purchase.
2. In its agreement with the agency provider for a specific child/youth the county department shall require that payment be the only payment under the contract. The county department must require that payment for child/youth specific adoption services be paid under single payment contracts.

E. Payment to Provider

1. Payment shall be made to the agency provider for those components provided and billed.
2. Payment to the provider shall be for satisfactory completion of the duties required by the agreement.
3. In the case of disrupted placements, the licensed child placement agency provider shall be paid for actual time spent on the case, not to exceed the maximum allowed for the component(s) utilized to that point in the placement. This payment shall be at the rate of the approved service hour cost as reflected in the component computation.

F. Reimbursement to the County Department of Human/Social Services

The Colorado Department of Human Services shall reimburse the county department for purchase of adoption service expenditures under approved agreements pursuant to Section 7.406.1.NN (12 CCR 2509-5).

G. Provider Agreement and Requirements

1. The county department and the licensed child placement agency provider shall enter into a provider agreement for adoption services to be purchased.

2. The county department shall monitor the provision of services under the purchase of adoption services agreement.
3. The licensed child placement agency provider shall be responsible to the county department for the quality of services provided under the agreement. For pre-placement, home assessment/evaluation, placement, and post-placement service components, the agency provider shall meet the standards for service quality as per the licensing regulations for adoption agencies.
4. County departments shall purchase adoption services only from licensed child placement agency providers who give assurance in their agreement that the purchased services shall be delivered only by staff who meet the following minimum qualifications for non-direct service components, for example, recruitment and legal services:
 - a. Some background showing awareness of and sensitivity to adoption issues; and,
 - b. At least one (1) year of experience and/or a degree appropriate to the service being purchased and (for legal services) a license to practice in their specialty field.

7.500.356 [Repealed eff. 11/01/2015]

Editor's Notes

History

Rules 7.500.2.B-C.3, 7.500.311 emer. rules eff. 08/03/2007.

Rules 7.500.2-C.3, 7.500.315 eff. 09/01/2007

Rules 7.500.2, 7.500.311 eff. 10/30/2007.

Rules 7.500.2, 7.500.351 emer. rules eff. 12/7/2007.

Rules 7.500.2, 7.500.351 eff. 1/30/2008.

Rules 7.500.3, 7.500.317 eff. 4/1/2008.

Rules 7.500.2, 7.500.31, 7.500.32 eff. 11/1/2008.

Rule 7.500.351 (A-B) eff. 02/01/2010.

Rules 7.500.3, 7.500.351.A.1, 7.351.B.1, 7.351.C.1 eff. 03/02/2011.

Rules 7.500.11, 7.500.2.A-C, 7.500.2.E-H, 7.500.3, 7.500.31.E-J, 7.500.311.B-D, 7.500.313.A, 7.500.314, 7.500.315, 7.500.316.A-B, 7.500.317.A.6, 7.500.321.B-C eff. 04/01/2012.

Rules 7.500.31, 7.500.31.K eff. 12/01/2012.

Rule 7.500.311 eff. 11/01/2015. Rule 7.500.356 repealed eff. 11/01/2015.

Rules 7.500.2, 7.500.3, 7.500.31, 7.500.311, 7.500.312, 7.500.313, 7.500.315, 7.500.316, 7.500.32, 7.500.323, 7.500.324 eff. 01/01/2016.

Rules 7.500.2, 7.500.315, 7.500.316, 7.500.321, 7.500.351 eff. 10/01/2017.

Rules 7.500.2 A.3-4, 7.500.2 A.6.a, 7.500.2 A.6.c.vi, 7.500.2 A.6.d.i, 7.500.2 A.6.d.v, 7.500.311 A, 7.500.311 B.a.5, 7.500.311 B.b.1-2, 7.500.315 A.1 emer. rules eff. 06/12/2020.

Rules 7.500.2 A.3-4, 7.500.2 A.6.a, 7.500.2 A.6.c.vi, 7.500.2 A.6.d.i, 7.500.2 A.6.d.v, 7.500.311 A, 7.500.311 B.a.5, 7.500.311 B.b.1-2, 7.500.315 A.1 eff. 09/01/2020.

Entire rule eff. 06/30/2023.